

MUNNERLYN, ET AL. VS. MARTIN, ET AL.

CASE NUMBER: 24CV-0205402

Tentative Ruling on Motion to Set Aside: Respondent Jonathan Martin moves to Set Aside Default. No proof of service of the Motion or a notice of hearing are on file. The Court cannot proceed to hear the merits of a Motion unless all parties have been served. Therefore, absent a request from Mr. Martin for a continuance to properly notice the Motion, the Court intends to **DENY** the Motion for failure to serve.

IN RE: PEACOCK

CASE NUMBER: 26CV-0211028

Tentative Ruling on Petition for Change of Name: Petitioner Christian Andrew Peacock seeks to change his name to Christian Andrew Johnston. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name.

PERRY VS. COUNTY OF SHASTA

CASE NUMBER: 26CV-0209982

DISCLOSURE: Judge Birss worked as an associate attorney at Berg and Associates from June 2014 through September 2018. His prior employment falls outside the time period requiring recusal. That prior employment does not impact his ability to be fair and impartial.

Tentative Ruling on Request for Administrative Record, and for Setting Briefing Schedule, and Hearing: This matter is on calendar for hearing on Petitioner's request that the Court request the Administrative Record and set a briefing schedule and hearing pursuant to Gov. Code 53069.4(b). The Court finds that this Motion is moot. The Administrative Record was lodged on July 24, 2026. The parties previously stipulated to the briefing schedule set forth in the County's Proposed Briefing and Hearing Schedule, filed June 10, 2026. The hearing has been set for October 30, 2026 at 8:30 a.m. All the relief requested in Petitioner's July 24, 2026 Request has been resolved. The Request is moot and is dropped from calendar. No appearances are necessary. The Court confirms the future hearing date of September 21, 2026 at 8:30 a.m. in Department 64 for further proceedings regarding the Motion for Stay of Enforcement.

IN RE: PETRICK

CASE NUMBER: 26CV-0211024

Tentative Ruling on Petition for Change of Name: Petitioner Kierra Lee Petrick seeks to change her last name to Love. She also seeks to change her two minor children's last name from Petrick to Love. Proof of publication has been filed.

However, the Petition is brought by only one parent. The father is not identified in the Petition. Petitioner must file an Amended Petition identifying the father. Additionally, when a petition to change the name of a minor is brought by one parent only, the nonconsenting parent must be personally served with the notice of hearing or order to show cause at least 30 days before the hearing date. See CCP § 1277(a)(4).

In the alternative to personal service, the Court may order notice be given in another manner the Court determines is reasonably calculated to give actual notice to the non-consenting parent. CCP § 1277(a)(4). No proof of service is on file. The Court has reviewed the Petitioner's declaration which states she could not locate the father when she was going through divorce court in 2024/2025. The Court will require Petitioner to make new efforts to locate and serve the father